

		The Motion for Final Approval will be heard on 12/3/2026 at 2:00 p.m. in Department CX102, as this department hears Law & Motion matters on Thursdays. All papers for the Motion for Final Approval must be filed and served no later than sixteen (16) court days before the hearing date. If Class Counsel cannot meet this deadline, then they must request a continuance of the hearing. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. At the Final Approval hearing, evidence supporting the request for an award of attorneys' fees should be presented in the form of time records or a summary of time spent on the substantive tasks, so as to enable the Court to evaluate the lodestar and costs claimed. Class Counsel should state by declaration whether time records were kept and created contemporaneously or otherwise. The Court also reminds Class Counsel that although a determination regarding the amount of the attorneys' fees award will not be made until final approval, the Court is unlikely to approve attorneys' fees in excess of thirty percent (30%) of the GSA absent unique circumstances. As a result, Class Counsel should address whether any such unique circumstances exist. Also at the Final Approval hearing, Class Counsel must also disclose whether counsel has any fee-splitting arrangement with any other counsel, or confirm none exists. Additionally, at the Final Approval hearing, each Plaintiff and Class Counsel must provide detailed declarations describing circumstances to justify the requested enhancement award and addressing the factors set forth in <i>Golba v. Dick's Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251, 1272, and <i>Clark v. American Residential Services, LLC</i> (2009) 175 Cal.App.4th 785, 804. Each Plaintiff must provide an estimate of the hours spent participating in this litigation. Plaintiffs to give notice of this Court's ruling, including to the LWDA, within five (5) court days, and file proof of service.
108	Gonzalez vs. U-HAUL CO. OF CALIFORNIA, 2021-01229571	Motion for Preliminary Approval of Class/PAGA Settlement The Court has reviewed the supplemental materials provided by Class Counsel and finds that they adequately address the previously identified issues. Accordingly, Plaintiffs Donny Sheldon, Thomas Gonzales, George Lyle, Diane Parker, Pamela Carroll, and Neisha Wayne's Motion for Preliminary Approval of Class Action and PAGA Settlement is GRANTED. This is a putative wage-and-hour class action and PAGA matter. On 11/2/2021, Plaintiff Thomas Gonzales, individually and on behalf of all others similarly situated, filed a class action and PAGA complaint against Defendant U-Haul Co. of California. (ROA #2.)

		On 8/3/2022, the Court granted Defendant’s motion to compel Plaintiff’s individual claims to arbitration, dismiss the class claims, and stay proceedings as to the representative PAGA claims pending arbitration. (ROA #40.) On 10/30/2023, Defendant notified the Court that Defendant had requested coordination of the instant action with two other similar actions that had been filed against Defendant in Alameda Superior Court: (1) <i>Sheldon v. U-Haul Co. of California</i>, Case No. 23CV035675 and (2) <i>Miles v. U-Haul Co. of California</i>, Case No. 23CV039574. (ROA #104.) On 4/3/2024, the parties reported that they “have agreed to schedule Mediation in an attempt to resolve this matter, and requested a stay of the Arbitration matter to be stayed while the Parties are discussing scheduling.” (ROA #114.) On 8/14/2024, the parties attended a first day of global mediation. The parties resumed mediation on 10/3/2024, and following a mediator’s proposal, the parties reached a settlement in principle on 10/17/2024. The parties executed a settlement term sheet on 12/30/2024. (See ROA #130; 140.) As part of the parties’ settlement, the parties stipulated for all plaintiffs to file a consolidated complaint in this action to effectively consolidate all claims and parties subject to the Class and PAGA settlement before this court. (ROA #146.) On 5/22/2025, Plaintiff Donny Sheldon, individually and on behalf of the class, and Plaintiffs Thomas Gonzales, George Lyle, Diane Parker, Pamela Carroll, and Neisha Wayne, individually and on behalf of the State of California and aggrieved employees, filed the operative, consolidated complaint alleging 17 causes of action for various Labor Code wage-and-hour violations, unfair business practices, and claims for PAGA penalties (ROA #149.) On 8/5/2025, Plaintiffs filed the instant motion for preliminary approval of the class action and PAGA settlement, and submitted the Class Action and PAGA Settlement Agreement and Class Notice for the Court’s review. The Motion seeks preliminary approval of the parties’ proposed settlement for the non-reversionary gross settlement amount (GSA) of \$7,750,000. On 1/15/2026, the Court continued the first hearing on the motion and asked Class Counsel to address various issues. (ROA #181.) Counsel submitted supplemental materials, including (1) an amended Class Action and PAGA Settlement Agreement (“Amended Settlement Agreement” (which was attached as Exhibit 1 to ROA #191); (2) an amended Class Notice (which was attached as Exhibit A to ROA #189); and (3) an amended proposed order (ROA #192). On 5/7/2026, the Court continued the second hearing on the motion and asked Class Counsel to address various issues. (ROA #196.) Counsel submitted additional supplemental materials, including a “Second Revised Class Action and PAGA Settlement Agreement” (“Second Revised Settlement Agreement”) (Exhibit 1 to ROA #209).
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Based on a review of all papers submitted, including the Amended Settlement Agreement, the Court finds the settlement falls within the range of what is considered fair and reasonable, subject to a final determination at the Final Approval hearing.

Within five (5) court days, Class Counsel must provide a further amended Proposed Order that is (1) not attached to a Notice of Errata but is a standalone document and (2) in ¶¶ 15 and 18, proposes an appropriate date for the Final Approval hearing given that this department hears Law & Motion matters on Thursdays.

The Motion for Final Approval will be set in accordance with the Court's Order Granting Preliminary Approval after Class Counsel proposes an appropriate date. All papers for the Motion for Final Approval must be filed and served no later than sixteen (16) court days before the hearing date. If Class Counsel cannot meet this deadline, then they must request a continuance of the hearing. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions.

At the Final Approval hearing, evidence supporting the request for an award of attorneys' fees should be presented in the form of time records or a summary of time spent on the substantive tasks, so as to enable the Court to evaluate the lodestar and costs claimed. Class Counsel should state by declaration whether time records were kept and created contemporaneously or otherwise. The Court also reminds Class Counsel that although a determination regarding the amount of the attorneys' fees award will not be made until final approval, the Court is unlikely to approve attorneys' fees in excess of thirty percent (30%) of the GSA absent unique circumstances. As a result, Class Counsel should address whether any such unique circumstances exist.

Also at the Final Approval hearing, Class Counsel must also disclose whether counsel has any fee-splitting arrangement with any other counsel, or confirm none exists.

Additionally, at the Final Approval hearing, each Plaintiff and Class Counsel must provide detailed declarations describing circumstances to justify the requested enhancement award and addressing the factors set forth in *Golba v. Dick's Sporting Goods, Inc.* (2015) 238 Cal.App.4th 1251, 1272, and *Clark v. American Residential Services, LLC* (2009) 175 Cal.App.4th 785, 804. Plaintiffs must each provide an estimate of the hours spent participating in this litigation.

Plaintiffs to give notice of this Court's ruling, including to the LWDA, within five (5) court days, and file proof of service.